

P Kesava Janardhan Rao vs Isro on 7 March, 2025

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O.A.Nos.170/202/ 2024/CAT/BANGALORE

CENTRAL ADMINISTRATIVE TRIBUNAL

BANGALORE BENCH, BENGALURU

ORIGINAL APPLICATION NO.170/00202/2024

Order Reserved on: 14.2.2025

Date of Order: 7.3.2025

CORAM:

HON'BLE MR.JUSTICE B.K SHRIVASTAVA, MEMBER (J)

HON'BLE DR. SANJIV KUMAR, MEMBER (A)

P.Kesava Janardhan Rao,
S/o Sri. P.S.Mouleswara Rao,
Aged 42 years, Working as Senior Assistant,
Emp. Code No. HQ 04191,
Indian Space Research Organisation,
Head Quarters, New BEL Road, Bengaluru-560 231,
Residing at No.19, 2nd Cross, 2nd Block,
Akshaya Nagar, Ramamurthynagar,
Bengaluru-560 231. ...Applicant

(By Advocate Shri.A.R.Holla)

Vs.

1. Union of India, By Secretary,
Department of Space, ISRO Head Quarters,
Anthariksh Bhavan, New BEL Road,
Bengaluru-560 094.

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2. The Senior Head, P&GA, Department of Space,
Indian Space Research Organisation,
Antariksh Bhavan, New BEL Road,
Bengaluru-560 231.

.....Respondents

(By Advocate Shri.Vishnu Bhat for R 1 to 2)

ORDER

PER: DR. SANJIV KUMAR, MEMBER (A)

This Original Application has been filed under Section 19 of the Administrative Tribunals Act 1985 claiming the following reliefs:

"(a) To quash the Order No. HQ.

ADMN: A.20 (5)-3/2024 dated 08.03.2024. Annexure-A8,

(b) Direct the respondents to extend all consequential benefits to the applicant accordingly and

(c) Grant such other relief deemed fit, having regard to the facts and circumstances of the case."

2. The reliefs are claimed on the grounds as mentioned in paragraphs 5(i) to (iv) of the Original Application. The brief SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE facts as narrated by the applicant are that the applicant was a permanent resident of Vishakapatnam and had been working as Senior Assistant in Indian Space Research Organisation Head Quarters, Bengaluru. He was due for promotion to the post of Administrative Officer. In the meantime, his wife filed a complaint against the applicant and his family members for offence under Section 498-A of IPC and for dowry harassment in the Women Police Station in Vishakapatnam City.

3. When the criminal proceeding was under investigation, the applicant was promoted as Administrative Officer and the authorities came to know that a charge sheet was filed in the criminal proceeding against the applicant and others on 17.09.2022. The respondent No.2 reverted the applicant by an order dated 08.03.2024 to the post of Senior Assistant treating his case for promotion as placed in a sealed cover to be opened after conclusion of the criminal proceeding. The SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE applicant has filed this application challenging the order of his reversion and seeking the aforementioned reliefs.

4. On notice, the respondents have filed their reply statement. No rejoinder has been filed.
5. The case came up for final hearing on 14.2.2025. Shri P.Kamalesan for the applicant and Shri.Vishnu Bhat for the respondents were present and heard.
6. We have carefully gone through the entire records and considered the rival contention.
7. Let us examine the grounds made out by the applicant one by one in this Original Application.
8. In paragraph 5(i), the applicant submits that he has been promoted as Administrative Officer as per the order dated 21.08.2023. He assumed the charge of the post of Administrative Officer on 21.08.2023 itself. Hence, the SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE question of placing his case in a sealed cover subsequently does not arise. The reversion of the applicant as Senior Assistant in terms of the Office Order dated 08.03.2024 Annexure-A8 is bad in law.
9. Further, in paragraph 5(ii), the applicant submits that there is no provision of law or DoP&T instruction which stipulates that an official can be reverted/demoted based on the pending criminal proceeding. In any event, the issue of Annexure-A8 dated 08.03.2024 was not preceded with giving the applicant an opportunity of being heard. Hence, Annexure-A8 has been issued reverting the applicant without following the principles of natural justice.
10. Further in paragraph 5(iii), the applicant submits that the criminal proceeding pending against the applicant has nothing to do with his official transactions. It is not connected with the course of his duties, but purely personal. As such, SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE there is no basis for the departmental authorities to punish the applicant taking advantage of his domestic problems.
11. Further in paragraph 5(iv), the applicant submits that imposition of a penalty or denying a benefit to an official cannot be done with retrospective effect. The position of law can be given effect to from a prospective date only.
12. To which the respondents in their reply statement said that the promotion order was issued to the applicant as per the vigilance clearance obtained at the relevant point of time, which in turn was based on the report given by the Police authorities stating that the FIR filed against him was under

investigation. Since the applicant is an employee of ISRO HQ and given posting in ISRO HO itself, he could assume charge of the promoted post on the same day. However, when vigilance clearance was sought before issuing the Office Order regarding his assumption of charge, fixation of pay and posting, the fact regarding filing of charge sheet against him SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE came to light through another letter from the very same Police authorities. Had the promotion not been effected to the applicant, the provision of para 7 of DOPT OM

dated 14.09.1992 would have been squarely applied to his case and his case will be treated as the one "deemed to have been kept in sealed cover". By virtue of the promotion order dated 21.08.2023, the case differs from the application of the para 7 of DOPT OM dated 14.09.1992. Considering the legal implications in case of reversion/cancellation of the promotion order issued to the applicant, the case was referred to DOS with a request to examine the same, in consultation with the nodal Ministry/Department, if required, and advise on further course of action. The reversion of the applicant was effected only based on the advice given by the Dept. after obtaining the views of the nodal Dept./Ministry in the matter.

All the facts and circumstances of the case which eventually led to his reversion were also categorically mentioned in the SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE speaking Order dated 08.03.2024 issued to the applicant and therefore, he cannot assail the same as bad in law at this stage.

13. Further reg. Para 5(ii) of the applicant, the respondents submitted that the DoPT OM dated 14.09.1992 read with OM dated 02.11.2012 clearly states that "vigilance clearance for the purpose of promotion cannot be granted, if prosecution for criminal charge is pending against the Govt. Servant and also that the DPC shall assess the suitability of the Govt. servant along with other eligible candidates without taking into consideration the criminal prosecution pending and the assessment of the DPC should be kept in sealed cover till the conclusion of the criminal prosecution." Para 7 of DOPT OM dated 14.09.1992 also stipulates that:

"A Govt. servant, who is recommended for promotion by the Departmental Promotion Committee but in whose case any of the circumstances mentioned in para 2 above arise after the recommendations of the DPC are received but before he is actually promoted, will be considered as if his case had been placed in a sealed cover SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE by the DPC. He shall not be promoted until he is completely exonerated of the charges against him. "

The position being so and since the reversion Order dated 08.03.2024 was issued by the Respondents after getting the legal opinion from Law Ministry's Branch Secretariat, Bengaluru and as advised by the Dept. in consultation with the nodal Dept./Ministry as mentioned above, the applicant cannot allege that there is no provision of law or DoPT instruction for taking recourse to such an action.

14. It is further submitted that the contention of the applicant that the issuance of Annexure-A8 reversion order was not preceded with giving the applicant an opportunity of being heard, it is submitted that the same was purely an administrative action required to be taken as per rules and all necessary procedures have been followed by the respondents before issuing the Order. The Respondents were, in fact, constrained to issue the reversion Order since as per rules, the recommendations of the DPC in the case of the applicant SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE should be "deemed

to have been kept under sealed cover" and no material change would have happened even if the applicant was given an opportunity of being heard in this case. As such, there is no substance in the contention of this applicant in this regard.

15. The respondents further say that vide his letter dated 30.05.2024 (ANNEXURE R-13), the applicant had preferred appeal to the next higher authority viz., Director, Administrative Services, ISRO Headquarters, requesting to effect the promotion originally ordered to him vide Office Order dated 21.08.2023 with all financial benefits from the date of assumption of charge of the post of Administrative Officer on the ground that the criminal case pending against him is purely on matrimonial issues and the same does not have any connection with the performance of his official duties. The appeal preferred by the applicant has been examined in detail by the Competent Authority and it was observed that the promotion as well as reversion effected in SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/2024/CAT/BANGALORE his case have been done by the respondents after following all necessary procedures as per law and all the facts and circumstances connected therewith were also informed to the applicant through a well-reasoned and speaking Order dated 08.03.2024. Accordingly, it was found not feasible to effect promotion to him till such time he is completely exonerated of all the charges against him by the Court of Law. The above factual position was informed to the applicant through another speaking Memorandum dated 14.06.2024 (ANNEXURE R-14). Hence the applicant has already availed one more opportunity of appeal or departmental remedy available to him by this time.

16. Further replying to para 5(iii), the respondents have stated that it is true that the criminal proceeding pending against the applicant has nothing to do with his official transactions. It is basically a family dispute which is purely personal to him and not connected with the course of his official duties and responsibilities. The Respondents also do SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/2024/CAT/BANGALORE not have any difference of opinion about the performance of the applicant at his work. However, the extant orders governing sealed cover procedure issued by the nodal Dept./Ministry viz., DOPT states only about pending criminal proceedings against the Govt servant and do not distinguish between cases connected with official duties or otherwise. It is also worthwhile to mention here that Para 6 of the DoPT OM dated 02.11.2012 states that When a Government Servant comes under a cloud, he may pass through three stages namely, Investigation, issue of the charge sheet in Departmental proceedings and/or prosecution for a criminal charge followed by either penalty/conviction or exoneration/acquittal. During the stage of investigation prior to issue of charge sheet in the disciplinary proceedings or prosecution, if the Government is of the view that the charges are serious and the officer should not be promoted, it is open to the Government to suspend the officer which will lead to the DPC recommendation to be kept in sealed cover." SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/2024/CAT/BANGALORE Since the FIR was registered Under Section 498A IPC, it is a cognizable, and non-bailable offence and hence the charges may be treated as serious. However, considering the fact that the alleged offence has arisen due to some matrimonial issues of the applicant and not connected with the performance of his official duties, he was not placed under suspension by giving him the benefit of doubt. The respondents were constrained to treat the case of the applicant as the one "deemed to

have been kept under sealed cover" and revert him to the substantive post of Senior Assistant only based on the report received from the Police authorities stating that a charge sheet has already been filed against him in the year 2022 itself and the case is Pending for Trial (PT), contradicting their own earlier report that the case was Under Investigation (UI). The position being so, the applicant cannot allege that he was punished by the Respondent Dept. taking advantage of his domestic problems and such contention is highly misplaced and not borne out of facts. SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE

17. Further regarding para 5(iv), the respondents submits that at the outset that the Respondents have not imposed any penalty on the applicant and he was not denied the benefit of promotion with retrospective effect either. It is the natural course of action which should have been followed by the Dept. as the case of the applicant had to be treated as "deemed to have been kept under sealed cover" due to the pending criminal proceedings against him as per extant rule provisions, which could not be adopted at the relevant point of time because of the unexpected turn of events happened in his peculiar case. The extant orders in this regard do not allow giving effect to the order of reversion from a prospective date also. The contention on the part of the applicant in this regard is baseless.

18. We have considered the contentions of both parties. Clearly, the case is on a small canvass with the limited issue being decided is that in cases wherein, by mistake (due to lack SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE of correct information), the promotion order has been effected due to wrong information from the police that the criminal case was at the stage of investigation, whereas in the case of the applicant the charge sheet was already filed much before the date of effecting adhoc promotion. And in the paragraph 7 of DoPT O.M dated 14.09.1992, it is mentioned that:

"A Government servant, who is recommended for promotion by the Departmental Promotion Committee but in whose case any of the circumstances mentioned in para 2 above arise after the recommendations of the DPC are received but before he is actually promoted, will be considered as if his case had been placed in a sealed cover by the DPC. He shall not be promoted until he is completely exonerated of the charges against him and the provisions contained in this OM will be applicable in his case also."

19. And paragraph 2 of the same DoPT O.M dated 14.09.1992 mentioned the following:

" 2. At the time of consideration of the cases of government servants for SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE promotion, details of government servants in the consideration zone for promotion falling under the following categories should be specifically brought to the notice of the Departmental Promotion Committee:-

- (i) Government servant under suspension;

(ii) Government servants in respect of whom a charge sheet has been issued and the disciplinary proceedings are pending; and

(iii) the government servant in respect of whom prosecution for a criminal charge is pending.

In such cases, the rule 7 will apply and it should have been in the sealed cover procedure until he is completely exonerated of all the charges against him.

20. However, the said circular also mentions about certain types of adhoc promotion in paragraph 5 :

"5.2 After a decision is taken to promote a Government servant on an ad-hoc basis, an order of promotion may be issued making it clear in the order itself that:-

SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30'
O.A.Nos.170/202/ 2024/CAT/BANGALORE

i)The promotion is being made on purely ad-hoc basis and the ad-hoc promotion will not confer any right for regular promotion; and

ii) The promotion shall be "until further orders". It should also be indicated in the orders that the Government reserve the right to cancel the ad-hoc promotion and revert at any time the government servant to the post from which he was promoted. "

21. The facts of the present case do not exactly fit in the circular, although we can see that on the date of promotion of the applicant on 21.8.2023 and his assumption of charge on the same date on 21.8.2023, there was clearly incorrect and incomplete information available in the office of the respondents, as the police report were showing the criminal case still pending against the applicant under investigation; whereas subsequent communication dated 12.10.2023 from the police, which is filed before us as Annexure R-7, the police authorities informed the respondents that after the completion of the investigation on 17.9.2022 itself charge SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE sheets were filed vide SS No.4719/2022 and the case was posted on 23.11.2023. So we clearly find that this case in hand is a case of lack of correct information with the authorities, for which even the applicant is partly if not fully and individually responsible. Because it was also his personal responsibility to keep track of the criminal case pending against him and to inform the authorities about its correct position; as and when the case proceeded from FIR to the investigation to the charge sheet stage and committed to the court. It is not disputed that the case of the applicant, as per DoPT O.M dated 14.9.1992 in No.22011/4/91-Estt.(A), should have been in the sealed cover, and he should not have been given the promotion immediately as a criminal case against him was pending in the court.

22. The case of the applicant is that due to lack of correct information if by mistake the respondents gave him promotion, the respondent department had no power to take back such promotion as the DoPT O.M does not provide for SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE such discretion. But we find that the same DoPT O.M dated 14.09.1992 envisages a situation where adhoc promotions are given with certain conditions and, on infringement of any such condition such adhoc promotion could be reversed. In the case in hand it is a fact that the order of promotion of the applicant was on adhoc basis as noted particularly for his case, although no other conditions were imposed by the authorities. But evidently such adhoc promotion by very definition and the nature of such order is amendable to reversal if anything goes wrong or violation of any condition express or implied is infringed. In the instant case it was implied that the applicant was given adhoc promotion on the understanding that he had no criminal cases (charge sheeted) against him pending in the court. But where the said fact was shown to be incorrect the department was right in reverting the said promotion order. We observe that it would have been ideal if the said adhoc promotion order had conditions clearly spelt therein as it was mentioned in the DoPT O.M dated SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE 14.9.1992. But in our considered view, lack of such condition in the promotion order itself may not substantially change the adhoc nature of the applicant's promotion order.

23. Further, the contention of the applicant is that his case is that of a domestic dispute, and it has nothing to do with the employment and the employer. This does not appear to be convincing argument as a government servant is required to have exemplary integrity and conduct, even in cases of domestic affairs where serious matters regarding dowry harassment etc are concerned, and where u/s 498-A of the IPC and sections 3 and 4 of the dowry prohibition act, etc. Cases are registered and prosecuted. Such case is cognizable and non-bailable and is of a serious nature, which may show the applicant's approach to any gender-related issues; which have many serious and wider ramifications. If in such case the applicant is indeed prosecuted in due course when the charges are substantiated by adequate evidence other provisions of conduct rule. CCS (CCA) Rule will kick in. SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE The Central Civil Services (Conduct) Rule, 1964, Section 13- A deals with Dowry:

" No government servant shall

(i) give or take or abet the giving or taking of dowry or

(ii) demand directly or indirectly from the parent or guardian of a bride or bridegroom, as the case may be, any dowry. "

Hence, at this stage, when the case is already committed to court, we cannot ignore such fact and come to a conclusion either way and take the case lightly or leniently.

And under the said Conduct Rules, which is very much applicable to the applicant, taking or demanding dowry is a misconduct punishable through the process of disciplinary action. Hence the

argument of the applicant that the case registered against him is personal, domestic matter and is innocuous one is not acceptable. We also observe that it is wrong on the part of the employer to accept in their pleadings that dowry related matter is merely personal domestic affair SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/2024/CAT/BANGALORE of an employee and is not concerning the employer and requiring their serious attention.

24. Considering the arguments of the respondents regarding given benefit of natural justice before taking away the benefit of being already given promotion under the wrong impression (due to wrong and inadequate information) by the department that there was no charge sheet in his case, as facts related to the same were wrongly informed by the police earlier via their various letters that are on record which were relied on to give the benefit of adhoc promotion to the applicant. And we accept the argument of the respondents that the respondents in fact were constrained to issue the reversion order since as per rules, the recommendations of the DPC in the case of the applicant should be "deemed to have been kept under sealed cover" and no material change would have happened even if the applicant was given an opportunity of being heard in this case. As such, there is no substance in the contention of the applicant in this regard. SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE

25. Hence, in such cases of not being heard also when the applicant is also partly responsible for non-availability of up- to-date and correct information of the charge sheet being already filed no convincing defence is made out. Nothing would have changed even if a notice had been issued in such case.

26. Further, although it is not pointed out by the respondents, we can see for ourselves in the promotion order dated 21.8.2023, specifically for the applicant, his promotion was on an ad-hoc basis, although it was not qualified with the clauses which the DoPT O. M dated 14.9.1992 required, that the promotion is being made on purely ad-hoc basis and the ad-hoc promotion will not confer any right for regular promotion and the promotion shall be until further orders, and it should also be indicated in the orders that the government reserve the right to cancel the ad-hoc promotion and revert at any time the government servant to the post SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE from which he was promoted. But clearly in the promotion order dated 21.8.2023, there are orders of promotion for five different officers at the level of Administrative Officer and three at the level of Senior Administrative Officer. Out of them, the word ad-hoc was not used for most of them whereas specifically in the case of the applicant, Shri. P.Kesava Janardhan Rao, Senior Assistant, ISRO HQ, Bangalore, it was mentioned that he is promoted to the post of Administrative Officer on an ad-hoc basis at Level 10. Hence, as a matter of fact the applicant's promotion was on ad-hoc basis and, in terms of DoPT O. M dated 14.9.1992, the respondent department had an inherent right to reverse his promotion orders based on the facts of wrong information being furnished by the police earlier, and the absence of correct up-to-date information from the applicant himself and correcting the order based on correct information available to them later.

SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/2024/CAT/BANGALORE

27. Furthermore, we have critically gone through the said order, and the said order and in the synopsis also mentioned that respondent no.2 reverted the applicant by order dated 8.3.2024 to the post of Senior Assistant, treating his case for promotion as placed in a sealed cover to be opened after the conclusion of the criminal proceeding. Hence, nothing will be lost for the applicant if the said reversal order was implemented. It merely means that the applicant's case was kept in a sealed cover and as and when he is exonerated of all the charges, as per rule, he will get all his dues in due course after the conclusion of the criminal proceedings.

28. Hence, none of the grounds made in any of his grounds in the O.A has dis-credited the actions of the respondents. And considering the above discussions, we do not find any merit in the case of the applicant. Accordingly we pass the following orders:

SHAIN SHAINNEY CAT VIJU EY Bangalore 2025.03.11 VIJU 13:45:26+05'30' O.A.Nos.170/202/ 2024/CAT/BANGALORE The Original Application is dismissed. Accordingly, pending M.As, if any, are disposed of. No costs.

Sd/ -

sd/ -

(DR. SANJIV KUMAR)
MEMBER (A)

(JUSTICE B.K.SHRIVASTAVA)
MEMBER (J)

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